

**United States Department of Agriculture Limited Sources Justification
For an Order/BPA Exceeding the Simplified Acquisition Threshold
FAR 8.405 Federal Supply Schedules (FSS) Multiple Award Schedule Program
Control No. (if applicable)**

1. Identification of the agency and the contracting activity.

U.S. Department of Agriculture (USDA), Farm Production and Conservation (FPAC) Business Center, Financial Management Division, serviced by U.S. Department of Agriculture (USDA), Department Administration (DA), Office of Contracting and Procurement (OCP), Procurement Operations Division (POD)

2. The nature and/or description of the action being approved.

The United States Department of Agriculture (USDA) Office of Contracting, and Procurement proposes to issue a sole source, short-term labor-hour contract to Creative Information Technology, Inc. (CITI), 7799 Leesburg Pike, Suite 500N, Falls Church, VA 22043 for USDA Farm Service Agency (FSA) Common Farm Program Systems (CFPS) & Subsidy and Disaster Systems (SaDS) support. The 3.5-months task order will continue FSA CFPS & SaDS support services currently performed under task order 12314424F0170 and will be awarded against CITI's General Services Administration (GSA) Schedule GS-35F-0194W.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

This acquisition will provide FSA CFPS & SaDS support services from March 27, 2025 – July 15, 2025. Services include requirements definition and analysis, systems development, production, maintenance, application assessment & authorization (A&A), disaster recovery for an estimated cost of \$4,572,245. This acquisition will support knowledge transfer and transition to the FPAC Farm Programs Software Delivery Services task order during the final two-months of performance.

4. The authority and supporting rationale.

The following circumstance justifies limiting the source under FAR 8.405-6:
FAR 8.405-6(a)(1)(i)(B) – Only one source is capable of providing the supplies or services required at the level of quality required.

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Pursuant to FAR 8.405-6(a)(1)(i)(B), CITI has the unique capability to be able to provide the required services as they are the only contractor that has immediate access to Government systems to continue providing mission critical support services. The services themselves are not unique to CITI, but they are situationally unique to the requirement, however, due to the nature of the bridge requirement it is critical that the services continue while the agency complete a competitive acquisition for a long-term requirement. The Government is completing new competitive acquisition on a solicitation to procure services for FPAC Farm Programs Software Delivery services, which will continue IT delivery services for FSA CFPS & SaDS. Any attempt to utilize other than the identified contractor will create

substantial duplication of cost to the Government that is not expected to be recovered through competition or otherwise.

The current time required to complete onboarding with USDA is between 30 - 90 business days and the end of performance on the existing order is March 26, 2025. It is not possible to onboard another vendor in this amount of time which further supports the situationally unique qualification of CITI in that they are the only contractor that has immediate access to provide the required and critical support. Any new vendor would not have sufficient time to complete onboarding, receive knowledge transfer and successfully provide the services. This would result in a break in service and would be detrimental to the Government.

The only solution ensuring the overall integrity and quality FPAC business processes, and their timely and effective adoption by the organization is to award a bridge task order to CITI. Not awarding a bridge task order to CITI would result in an immediate loss of critical support, institutional knowledge and create duplicate start-up costs that the Government would not recoup. No other vendor has the capability to have immediate access to Government systems to provide the required support needed at the quality level required as well as does not have the institutional knowledge nor environmental knowledge to support the requirement at the quality level required.

The original source can provide the services without a duplication of start-up cost that will not be recovered through competition. The following factors cause a competition to not be in the government's best interest:

- Security Adjudication
- Badging
- Government furnished equipment (GFE) issue and configuration
- Knowledge capture and transfer

The new vendor would then require overlap with the incumbent for two months for knowledge transfer. This requirement will be for 3.5 months at which time this requirement will be awarded via full and open competition on CIO-SP3-SB.

6. A determination by the ordering activity Contracting Officer (CO) that the order represents the best value consistent with FAR 8.404(d).

Placing this order presents the best value to the government. Award will be made based on the receipt of a technically acceptable quote. Prices are already determined to be fair and reasonable IAW FAR 8.404 and their quote will be compared to other prices on schedule. USDA will review the contractor's proposed technical solution in response to the performance work statement and review the pricing quote taking the level of effort and mix of skills available into consideration. The resulting order will be labor hour contract. USDA will conduct a price analysis as required.

7. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.

USDA continually performs market research for the related services. The Government did not do any specialized market research for this acquisition because it is solely intended to provide services to Farm Service Agency until the Beech services are awarded. As stated previously the unique qualification is CITI has immediate access which is required to meet the Government need. Market research is ongoing for the follow-on competitive acquisition.

8. Any other facts supporting the justification.

The FSA Common Farm, Subsidy, and Disaster contract cannot have a lapse in service as these resources are working on the critical Emergency Loan Program which is part of the \$10B ECAP program. We are in a situation where the deadline does not allow us to have contractors idle for a whole business day as that could create a significant risk to meeting the mandatory deadlines.

The cause of the delay in completing a competitive follow-on is due to a protest of the original long-term replacement award. Due to the overall magnitude of the requirement the replacement solicitation needed to be updated which caused the delay in issuing that solicitation. The solicitation is active and open with award expected to be issued by end of April. The length of this bridge is to accommodate continuing support as well as potential transition. No additional bridge actions are anticipated as issuance of the competitive award is on track.

9. A statement of actions the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

The Government is concurrently seeking a fully competitive award to be in place upon expiration of this temporary bridge task order. An acquisition is in process to complete the new compliance support services requirement on CIO-SP3-SB via a competitive Small Business set-aside acquisition. There are no anticipated barriers to competition for the follow-on competitive procurement.

Certifications & Approval

Supporting data which form the basis for and included in this justification are certified accurate and complete.

JEREMY ZELMAN Digitally signed by JEREMY ZELMAN
Date: 2025.03.21 09:59:45 -04'00'

Jeremy Zelman, Contracting Officer's Representative (COR)
Information Solutions Division, Farm Production and Conservation Business Center

TONYE GROSS Digitally signed by TONYE GROSS
Date: 2025.03.21 10:47:32 -04'00'

Tonye Gross
Assistant Chief Information Officer (ACIO)

The information contained in this Limited Sources Justification is certified accurate and complete to the best of my knowledge and belief.

CHRIS LASHURE Digitally signed by CHRIS LASHURE
Date: 2025.03.21 09:59:50 -05'00'

Chris LaShure
Contracting Officer

Additional Reviews & Approvals

Signatures are required at each threshold up to the total estimated dollar value of the acquisition.

Advocate for competition for the procuring activity (if over \$750,000, but not exceeding \$15 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as advocate for competition for the procuring activity, I hereby approve this justification.

MATTHEW KOPP Digitally signed by MATTHEW
KOPP
Date: 2025.03.26 16:16:29 -04'00'

Matt Kopp
Chief, Procurement Operations Division (Acting)
Procuring Activity Advocate for Competition

Head of the Procuring Activity (if over \$15 million, but not exceeding \$75 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as Mission Area-Senior Contracting Official, I hereby approve this justification. If required, my approval constitutes clearance for submission to the Senior Procurement Executive.

HILARY ERICKSON Digitally signed by HILARY
ERICKSON
Date: 2025.03.26 15:47:06 -05'00'

Hilary (Cole) Erickson
Head of the Procuring Activity
United States Department of Agriculture